Collective Bargaining Agreement: Air Transport Industry

IT is hereby notified that, in terms of section 80 of the Labour Act [*Chapter 28:01*], the Minister of Public Service, Labour, and Social Welfare has approved the publication of the Collective Bargaining Agreement set out in the Schedule. This agreement was registered in terms of section 79 of the Labour Act [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE AIR TRANSPORT INDUSTRY

COLLECTIVE BARGAINING AGREEMENT: CHILD LABOUR AND LIST OF HAZARDOUS WORK

This further agreement, made and entered into, in accordance with the provisions of the Labour Act [*Chapter 28:01*], between the Employers' Association for the Air Transport Industry (hereinafter referred to as the "employers") and National Airways Workers Union (NAWU), Air Transport Union (ATU) and Zimbabwe Aircraft Maintenance Engineering Association (ZAMEA) hereinafter referred to as Employees Association for the Air Transport Industry) being parties to the National Employment Council for the Air Transport Industry, the Collective Bargaining Agreement for the Air Transport Industry, published in Statutory Instrument 55 of 1992, is amended as follows—

Amendment of Section 5

Section 3 (*Interpretation)* of Collective Bargaining Agreement for the Air Transport Industry (*S.1. 55 of 1992*) herein after called the Principal CBA to be amended by insertion of these clauses—

"Child" means any person below the age of eighteen years (18);

"Child labour" means work that is mentally, physically, socially, or morally dangerous and harmful to children; deprives children of the opportunity to attend school or forces children to leave school prematurely; requiring them to attempt to combine school attendance with excessively long and heavy work and work that is in violation of a country's minimum age laws;

"**Worst forms of child labour"** means extreme forms of child labour which involve child slavery, exposure to serious hazards and illnesses;

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"Hazardous work" means ny type of employment or work which by its nature or the circumstances in which it is carried out is likely to jeopardise health, safety, or morals;

"Light work" means work, which is not likely to jeopardise the education, health, safety, rest or the social, physical or mental development of a child**.**

Amendment of Section 23

Section 23 (*Contract and Notice*) of the Principal Act is to be amended by the insertion of subsection 14 on EMPLOYMENT OF YOUNG PERSONS as follows:

(1) No employer shall employ any person in any position who is under the age of sixteen (16) years—

(a) as an apprentice;

(b) other than an apprentice to perform any work in an undertaking

(2) No employer shall employ any person below the age of eighteen (18)—

(a) to perform hazardous work;

(b) to perform work in an undertaking other than as an apprentice or in conjunction with training at a vocational or technical training school.

(3) No employer shall cause any person under the age of eighteen (18) to perform the following work—

(a) any work which is likely to jeopardize or interfere with the education of the child or young person;

(b) any work involving contact with any hazardous substance, article or process;

(c) any work that exposes a child to electrically powered tools, cutting or grinding blades;

(d) any work that exposes a child to excess heat, cold, noise or whole-body vibration;

(e) any night shifts.

List of hazardous work

Hazardous work in the Air Transport Industry comprises of activities involving handling and transportation of dangerous goods which are identified as such by the International Civil Aviation Organisation (ICAO) from time to time. These are classified in 9 categories as tabulated below:

Hazardous Activities/Tasks	Hazard Areas	Risk
1. **Explosives:** Transportation, packing, and packaging, freight forwarding of materials which have ability to rapidly detonate as a consequence of chemical reaction	Handling services Test beds	Causes catastrophic damage, injury or death through force, hazardous amounts of heat, light, sound, gas or smoke
1. Flammable gases: Transportation, packing, and packaging, freight forwarding of substances which have a vapour pressure of 300 kPa or greater at 50 degrees Celsius such as aerosols, compressed air, Butane, Ethane, Methane, Fertilizer ammonium solution, insecticides, fire extinguishers, lighters, Helium compounds and Nitrogen compounds	-Handling Services -Aircraft workshops	Poses serious risk due to their flammability, potential as asphyxiants, ability to oxidise and toxicity or corrosiveness to humans
3. Flammable liquids: Transportation, packing, and packaging, freight forwarding of liquids, mixtures of liquids or liquids containing solids in solution or suspension which give off a flammable vapour (have a flash point) at temperatures of not more than 60–65 degrees Celsius.	Handling services Test Beds Aircraft Hangar	Poses risk of injury and death due to their volatility, combustibility and potential in causing severe fires
4. Flammable solids: Transportation, packing, and packaging, freight forwarding of materials which, under conditions of encountered in transport, are readily combustible or may contribute to fire through friction, self-restrictive substances which are liable to undergo strongly exothermic reaction or solid desensitised explosives.	Handling Services Test Beds Hangar	Poses risk of injury and death due to their volatility, combustibility and potential in causing severe fires
5. Oxidizers/Organic peroxides: Transportation, packing and packaging, freight forwarding of substances which may cause combustion generally by yielding oxygen as a result of a redox chemical reaction. Organic peroxides are thermally unstable and may exude heat whilst undergoing exothermic autocatalytic decomposition	Handling Services Test beds Aircraft workshops	Poses risk of injury and death due to their combustibility and sensitivity to react dangerously with other substances and cause damage to eyes.

Hazardous Activities/Tasks	Hazard Areas	Risk
6. Toxic and infectious substances: Transportation, packing and packaging, freight forwarding of pathogens or microorganisms such as bacteria, viruses, parasites, fungi rickettsia, clinical waste, medical specimens and samples, Dyes, Cyanides, biological cultures, Phenol and tear gas substances	Handling Services Hangar Test Beds	Pose significant risk of causing diseases in humans or animals upon contact
7. Radioactive material: Transportation, packing, and material packaging, freight forwarding of any material containing radionuclides where both the activity concentration and the total activity exceeds certain predefined values such as radioactive ores, medical isotopes, Uranium hexafluoride, enriched Uranium Yellowcake, Density gauges and mixed fission products.	Entry/Exit security check points Handling Services	Emission of ionizing radiation causes severe risk to human health
8. Corrosives: Transportation, packing, and packaging, freight forwarding of any substances which by chemical action degrade or disintegrate other materials upon contact	Handling Services Aircraft workshops	Risk of severe damage when in contact with living tissue or, in the case of leakage, damage or destroy surrounding materials.
9. Miscellaneous: Handling and transportation of substances and articles which during transport present a danger or hazard not covered by other classes. This class encompasses, but is not limited to, environmentally hazardous substances, substances that are transported at elevated temperatures, miscellaneous articles and substances, genetically modified organisms and micro-organisms and (depending on the method of transport) magnetized materials and aviation regulated substances		
(a) Transportation of human Remains	Handling services	Risk of infectious diseases
(a) Noise pollution:	Airports and Aerodromes Test Beds	Risk to human health
(a) Ramp operations	Ramp	Electrocution, vehicle accidents, falling objects, the risk of fires and explosions

Declaration

The Employers' Association and the Employees' Association having arrived at the agreement set forth, the undersigned hereby declare the foregoing is the agreement and affix their signatures hereto

Signed at Harare this 12th day of July, 2022.

S. MAZINEFU,
Employees' Association Representative:
Air Transport Union (ATU).

F. CHAHUFA,
National Air Transport Union (ATU):

J. MUPANDI,
Zimbabwe Aircraft Maintenance Engineers Association (ZAMEA).

P. MANDEYA,
Employers' Association Representative:

E. CHANDAKASARIRA,
NEC General Secretary.